IN THE NATIONAL COMPANY LAW TRIBUNAL

NEW DELHI BENCH- V

CA (CAA) 133 (ND) of 2021

IN THE MATTER OF:

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016.

AND

IN THE MATTER OF SCHEME OF AMALGAMATION

AMONGST

SCANBEE TECHNOLOGIES PRIVATE LIMITED
36, 2nd Floor, Gola Market,
Daryaganj, near Golcha Cinema,
New Delhi - 110002

.....Applicant No. 1/Transferor Company

AND

MPOWER SOFTCOMM PRIVATE LIMITED
629, DDA Flats, Sector-22,
Dwarka, New Delhi- 110075

.....Applicant No. 2/Transferee Company

ORDER DELIVERED ON: 05.05.2022

CORAM:

MR. ABNI RANJAN KUMAR SINHA, MEMBER (JUDICIAL)

MR. AVINASH K. SRIVASTAVA, MEMBER (TECHNICAL)

PRESENT:

For Petitioner(s): Adv. Akshay Kumar

ORDER

PER: MR. ABNI RANJAN KUMAR SINHA, MEMBER (Judicial)

1. This is an application filled by the Applicant Companies under Section 230 to 232 of the Companies Act, 2013 (for brevity "The Act") read with Companies (Compromises, Arrangements and Amalgamation) Rule, 2016 (for brevity "The Rules") in relation to the Scheme of Amalgamation (for brevity "The Scheme") proposed between the Applicant Companies. In terms of Sections 230 and 232 of the Act following prayers have been made for orders:-

a) *Dispense the requirement of convening, holding and conducting the meetings of the equity shareholders and preference shareholders of the Applicant Companies;*
b) *Dispense the requirement of convening, holding and conducting the meetings of the unsecured creditors of the Applicant Companies;*
c) *AND/OR pass such other and further orders as are deemed necessary in the facts and circumstance of this case.*

2. An Affidavit in support of the application sworn for and on behalf of all the Applicant Companies has been filed by Ms. Shalini Panhotra being the authorized signatory.

3. It is represented that the Scheme does not contemplate any reduction of share capital and corporate debt restructuring exercise as contemplated under Section 230(2) of the Act. It is further represented that the application filed by the Applicant Companies is maintainable in view of Rule 3(2) of the Rules and it is also represented that the registered office of the Applicant Companies are situated within the territorial jurisdiction of this Tribunal and falls within the domain of Registrar of Companies, NCT, New Delhi.

4. It is submitted that the proposed amalgamation is sought to be made under the provisions of Section 230 to 232 of the Companies Act, 2013 and the same if sanctioned by this Tribunal, the appointed date as provided in the Scheme shall be 01.04.2020.

5. In relation to the Transferor Company, it has been represented that the company has 2 Equity Shareholders and consent affidavits from all the shareholders have been obtained constituting 100% in value and 100% in number. The consent affidavits of each of the members have been placed on record. We are further apprised that the Transferor Company has NIL Secured Creditors and 1 Unsecured Creditor. The consent affidavit of the Unsecured Creditor has been placed on record. In relation to the shareholders and unsecured creditor, the Transferor Company seeks dispensation from convening and holding of their respective meetings, on the ground that all the shareholders and the unsecured creditor have given their consent affidavits in favour of the Scheme.

6. In relation to the Transferee Company, it has been represented that the company has 7 Equity Shareholders and 1 Preference Shareholder and consent affidavits from all the shareholders have been obtained constituting 100% in value and 100% in number. The consent affidavits of each of the members have been placed on record. We are further apprised that the Transferee Company has NIL Secured and 2 Unsecured Creditors. The consent affidavits of all the Unsecured Creditors have been placed on record. In relation to the shareholders and unsecured creditors, the Transferee Company seeks dispensation from convening and holding of meetings, on the ground that all the shareholders and unsecured creditors have given their consent affidavits in favour of the Scheme.

7. We have heard the Ld. Counsel for the Applicant Companies and perused the application and the connected documents filed along with the Scheme of Amalgamation contemplated between the Companies.

8. Transferor Company –SCANBEE TECHNOLOGIES PRIVATE LIMITED was incorporated on 29.06.2016 in the state of Delhi under the provisions of Companies Act, 2013. The authorised share capital of the Company is Rs. 1,00,000/- only divided into 10,000 /- equity shares of Rs. 10 each . The issued, subscribed and paid-up share capital of the Company is Rs. 1,00,000 /- divided into 10,000 equity shares of Rs. 10/- each.

9. Transferee Company- MPOWER SOFTCOMM PRIVATE LIMITED on was incorporated on 13.01.2006 in the state of Delhi under the provisions of Companies Act, 1956. The authorised share capital of the Company is Rs. 5,00,00,000/- only divided into 50,00,000/- equity shares of Rs. 1 each and 4,50,000 redeemable preference shares of Rs. 100/- each. The issued, subscribed and paid-up share capital of the Company is Rs. 4,42,99,270/- divided into 1,62,870 equity shares of Rs. 1/- each and 4,41,364 redeemable preference shares of Rs. 100/- each.

10. It is seen that the Board of Directors of the Transferor Company and the Transferee Company vide their board meetings held on 20.03.2020 and 19.03.2020 respectively have unanimously approved the proposed Scheme of Amalgamation. Copies of such resolutions passed thereat have been placed on record.

11. The Applicant Companies have filed the Audited Financial Statements for the financial year ended 31st March, 2021.

12. The Applicant Companies have submitted vide Affidavit dt. 28.01.2022 that no inspection, inquiry or investigation is pending against any of the Applicant Companies.

13. Certificate of respective statutory auditors of the Applicant Companies have been placed on record confirming that the accounting treatment in the scheme is in conformity with Section 133 of the Companies Act, 2013.

14. Valuation Report dt. 14.09.2020 has also been placed on record.

15. In sequel to above and in our considered view, the Tribunal, in view of the settled law, is empowered to dispense with the meeting of shareholders if they have given their consent. Further, in view of Section 230(9) of the Companies Act, 2013, the Tribunal is empowered to dispense with calling of a meeting of creditor or class of creditors where such creditors or class of creditors, having at least ninety per cent value, agree and confirm, by way of affidavit, to the scheme of compromise or arrangement. Accordingly, the following directions are given:-

A. In relation to the Transferor Company:

i. With respect to Shareholders:

It is represented by the Transferor Company that all the shareholders have already placed their consent-affidavits on record. Therefore, the necessity of convening and holding a meeting is dispensed with.

ii. With respect to Secured Creditors:

It is represented by the Transferor Company that there are NIL Secured Creditors. Therefore, the necessity of convening and holding a meeting does not arise.

iii. With respect to Unsecured Creditors:

It is represented by the Transferor Company that the Unsecured Creditor has already placed its consent-affidavit on record. Therefore, the necessity of convening and holding a meeting is dispensed with.

B. In relation to the Transferee Company:

i. With respect to Shareholders:

It is represented by the Transferee Company that all the shareholders have already placed their consent-affidavits on record. Therefore, the necessity of convening and holding a meeting is dispensed with.

ii. With respect to Secured Creditors:

It is represented by the Transferee Company that there are NIL Secured Creditors. Therefore, the necessity of convening and holding a meeting does not arise.

iii. With respect to Unsecured Creditors:

It is represented by the Transferee Company that all the unsecured creditors have already placed their consent-affidavits on record. Therefore, the necessity of convening and holding a meeting is dispensed with.

16. Accordingly, in terms of the above order, CA (CAA) 133 (ND) of 2021 is allowed.

-Sd-

(AVINASH K. SRIVASTAVA)
Member (T)

-Sd-

(ABNI RANJAN KUMAR SINHA)
Member (J)